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April 10, 2025

ENGROSSED HOUSE
BILL NO. 1062

By: Luttrell and Pittman of the
House

and

Coleman of the Senate

An Act relating to alcoholic beverages; amending 37A O.S. 2021, Section 2-121, as amended by Section 1, Chapter 81, O.S.L. 2022 (37A O.S. Supp. 2024, Section 2-121), which relates to employee licenses; providing that holders of a license may serve certain beverages if they are eighteen years of age and older; providing restrictions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-121, as amended by Section 1, Chapter 81, O.S.L. 2022 (37A O.S. Supp. 2024, Section 2-121), is amended to read as follows:

Section 2-121. A. An employee license shall authorize the holder thereof to work in a licensed package store, retail spirits, retail wine or retail beer establishment, brewpub, mixed beverage establishment, beer and wine establishment, bottle club, public event or any establishment where alcohol or alcoholic beverages are sold, mixed or served. Persons employed by a mixed beverage, on-

1 premises beer and wine, retail wine, retail beer, public event or a
2 bottle club licensee who do not participate in the service, mixing
3 or sale of mixed beverages shall not be required to have an employee
4 license. Provided, however, that a manager employed by a mixed
5 beverage licensee, public event licensee or a bottle club shall be
6 required to have an employee license whether or not the manager
7 participates in the service, mixing or sale of mixed beverages.
8 Applicants for an employee license shall be at least eighteen (18)
9 years of age, except for applicants employed by a grocery store or
10 convenience store who shall be at least sixteen (16) years of age,
11 and have a health card issued by the county in which they are
12 employed, if the county issues such a card; ~~provided.~~ Provided, the
13 provisions of this section shall not be construed to permit any
14 person under twenty-one (21) years of age to be employed to sell
15 spirits; however, individuals eighteen (18) years of age and older
16 may open and serve beer and wine from their original containers or
17 serve beer, wine, and spirits from a shaker tin that has been
18 premade and mixed by an employee who is at least twenty-one (21)
19 years of age. Employees of a special event, caterer, unless
20 catering a mixed beverage-licensed premises, or airline/railroad
21 beverage licensees shall not be required to obtain an employee
22 license; further, employees of beer distributors and other licensees
23 holding licenses issued by the ABLE Commission shall not be required
24 to obtain an employee license if such employee only sells alcohol or

1 alcoholic beverages to establishments holding licenses issued by the
2 ABLE Commission and not to the public. Persons employed by a hotel
3 licensee who participate in the stocking of hotel room mini-bars or
4 in the handling of alcoholic beverages to be placed in such devices
5 shall be required to have an employee license. As a prerequisite to
6 the issuance of an employee license, not later than fourteen (14)
7 days after initial licensure, the first-time applicant shall be
8 required to have successfully completed a training program conducted
9 by the ABLE Commission, or by another entity approved by the ABLE
10 Commission including an in-house training program conducted by the
11 employer. Proof of training completion shall be made available for
12 inspection by the ABLE Commission at the business location employing
13 the licensee. The failure of an employee licensee to comply with
14 this section may constitute a revocable offense.

15 B. In the event the ABLE Commission denies an application for
16 an employee license, the Commission shall provide written notice to
17 the applicant's employer, if any. The notice shall be given at the
18 time notice is provided to the applicant.

19 SECTION 2. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
21 April 10, 2025 - DO PASS
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